

THE GEOGRAPHICAL INDICATIONS OF GOODS (REGISTRATION AND PROTECTION) ACT, 1999 (ACT NO. 48 OF 1999)

CHAPTER I & II: PRELIMINARY AND REGISTRATION

Section 2(1)(e): "geographical indication", in relation to goods, means an indication which identifies such goods as agricultural goods, natural goods or manufactured goods as originating, or manufactured in the territory of a country, or a region or locality in that territory, where a given quality, reputation or other characteristic of such goods is essentially attributable to its geographical origin.

Section 2(1)(k): "producer", in relation to goods, means producer of agricultural goods, person who exploits natural goods, or person who makes/manufactures handicraft or industrial goods.

Section 8: Registration in respect of particular goods and area.

Section 9: Prohibition of registration of certain geographical indications (deceptive, contrary to law, generic names, etc.).

CHAPTER IV & V: RIGHTS, INFRINGEMENT & TM INTERACTION

Section 21: Rights conferred by registration:

(a) To registered proprietor and authorized user(s) the right to obtain relief in respect of infringement;

(b) To authorized user exclusive right to use GI in relation to goods.

Section 22: Infringement of registered geographical indications:

Use of GI suggesting goods originate in another geographical area misleading the public, or acts of unfair competition/passing off.

Section 24: Prohibition of assignment, transmission, licensing, pledge, or mortgage of GI (GIs are collective public property).

Section 25: Prohibition of registration of geographical indication as a trade mark:

Trade marks containing or consisting of GIs for goods not originating from that region shall be refused or invalidated.

Application to Ayurvedic & Botanical Heritage:

Traditional regional botanicals (e.g. Navara rice, Alleppey Green Cardamom, Malabar Pepper, Darjeeling Tea, Kashmir Saffron) possess distinctive therapeutic terroirs protected under GI legislation to prevent biopiracy and misleading branding.